

MASTER LOG — THE PID, THE ACTORS, THE FORM 29, THE 64G, THE LOCKOUT AND WHAT FOLLOWED

WC/2024/227 · Shepherd v Workers' Compensation Regulator · compiled 5 August 2026

■ **INTERNAL WORKING DOCUMENT. NOT FOR SERVICE AND NOT FOR DISCLOSURE.** Contains entries referable to a public interest disclosure (s 65 PID Act) and one restricted category. Nothing in this log is an allegation of coordination or improper purpose; entries are recorded in date order only.

PHASE 1 — THE STANDING CONDITION (2023)

Date / time	Event	Source · significance
6 Jun 2023	Communication book entry by the Appellant re verifying and updating doctors' on-call contact details; the page is removed by the Line Manager	Removal admitted — Form 24 ¶6. Contents not admitted (¶7). Item 18
16 Jun 2023	Appellant raises “No consultation of the team members or the department when making major changes”	Form 20 ¶28
18 Jul 2023	Stibbard: “removing everyone's access to the database”; directory updates restricted to the Telecommunications Coordinator role	Form 20 ¶22 — the operational change that drove complaint volume
7 Aug 2023	Grievance re the Line Manager's conduct, raising WHS concerns about unsafe rostering and fatigue. Not upheld; directed to continue reporting to her	Reese acknowledges a rostering error — admitted , Form 24 ¶5
11 Aug 2023	Text to the Line Manager notifying intention to become Switchboard delegate	Sending admitted; characterised “not a formal notification” — Form 24 ¶18
31 Aug 2023	Full-time application, recording the delegate intention	Exhibit CS-3. Approved 27 Sep; commenced 16 Oct 2023
15 Nov 2023	Business case minutes	Item 18 of the Notice

PHASE 2 — THE PLEADED PERIOD (Feb–May 2024)

Date / time	Event	Source · significance
20 Feb 2024 11:24	COVID pandemic leave form 15480560 drafted; submitted 11:41:27	Exact timestamps from the myHR audit trail produced at Item 11
21 Feb 2024 12:23	Declined (Donovan-Taylor)	Item 11 audit trail
28 Feb 2024 06:07	Resubmitted	Item 11
29 Feb 2024 09:06	Declined a second time	Item 11
29 Feb 2024 11:07	Resubmitted; approved 11:21:03 on the same supporting evidence	Item 11. Manager + Delegate approved by Reese 1 Mar 16:05:08
17–18 Mar 2024	Consecutive shifts ending 23:00 and recommencing 06:00 — a 7-hour break , against the 10-hour minimum (8 only by written agreement)	Both admitted — Form 24 ¶1 and ¶3. Stressor 3
19 Mar 2024	Fatigue leave refused in reliance on the 8-hour agreement signed 17 Jun 2020; personal leave exhausted instead	Form 20 ¶40. Item 15 leave ledger
3 May 2024	Payroll (E Grant) instructs the Line Manager to “submit an AVAC to correct these shifts”	Admitted — Form 24 ¶40
9 May 2024	Line Manager's MASPER email — a doctor's hours “not provided on the rosters” and the contact number “switched off”	Exhibit CS-1. Form 20 ¶27 — a roster problem answered by changing call handling

PHASE 3 — ■ THE PID AND THE SHARED HR MAILBOX (13–28 May 2024)

Date / time	Event	Source · significance
13 May 2024	■ PID complaint lodged with the Ethical Standards Unit	ESU complaint form. Determined a PID 24 Dec 2024 — admitted , Form 24 ¶20
15 May 2024 13:15	“Office Hours and Departmental Directives” email — to the Line Manager + Logan Switch, cc 17 staff + LBH_HR	11 Jun 2026 disclosure, p 6
15 May 2024 15:35	PID email — to MetroSouthESU; CO_Complaints; LBH_HR	11 Jun 2026 disclosure, p 8

Date / time	Event	Source · significance
15 May 2024 15:41	■ M Harrison (Support Officer, HR) forwards from LBH_HR → B Punch, E McGinley, A McNamee — “email from Corey Shephard to ESU and CO Complaints regarding Chloe Taylor”	11 Jun 2026 disclosure, p 7. Routed within HR — not to the Line Manager, not to the Director. Harrison is the officer who refuses pay in 2026
15 May 2024 18:23	The Director directs the Appellant to retract an email inquiring about office hours; the email carries Recall-This-Message instructions	Admitted — Form 24 ¶21. A comparable email by the Line Manager on 9 May attracted no such direction (denied, ¶22)
16 May 2024 11:43	■ E McGinley (A/Senior Consultant, HR) → T Reese and T Smith; cc Punch, Pritchard, McNamee, attaching “Chloe Taylor scc-complaint-form.docx”: “Cory sent his complaint directly to the Ethical Standards Unit who are currently awaiting further documentation... Once ESU have ... finalised their assessment we will reach out to discuss next steps”	11 Jun 2026 disclosure, p 7. This is the operational HR response MSH later tells the Commission does not exist (Item 20)
18–20 May 2024	Request to Together Queensland (H Hayes); union confirms it passed the correspondence to the Health team	Exhibit CS-2
21 May 2024	The Director asks the Appellant to identify the directives about which he had consultation concerns	Form 20 ¶28
28 May 2024	AVAC submitted — a 25-day delay from the payroll instruction	Admitted — Form 24 ¶41

PHASE 4 — INJURY, TERMINATION, REVIEW, DETERMINATION (Jun–Dec 2024)

Date / time	Event	Source · significance
18 Jun 2024	■ ONSET OF INJURY — Major Depressive Disorder with anxious distress	Amended Form 9A. WCRA s 32(1): employment must be a significant contributing factor
after 30 Jun 2024	■ Fatigue risk management implemented at Logan Switchboard, “in connection with an organisational change related to the reporting lines”	MSH's own words, Item 5, 5 Jun 2026 letter. Twelve days after the injury
12 & 16 Jul 2024	Required to attend meetings convened by management while on certified leave	Form 20 ¶42
30 Aug 2024	CCC complaint	Referred back to MSH 22 Nov 2024
8 Sep 2024	Work Capacity Certificate signed (Dr Hawes)	First certificate for the injury
8 Oct 2024	Employment terminated on the basis of “abandonment of employment”	Form 20 ¶43. Reinstatement application TD/2024/110, stamped 25 Oct
24 Oct 2024	■ Review Decision 69983 — the Regulator's own Reviewing Officer finds the 7-hour break “amounted to unreasonable management action” and is satisfied employment was a significant contributing factor	Contents admitted — Form 24 ¶37, relevance reserved on the de novo
22 Nov 2024	CCC refers the complaint back to MSH	PID track
24 Dec 2024	■ J Loader, Director ESU, determines PID 24-ESU-1130	Admitted — Form 24 ¶20. s 65 PID Act protection; order 6 of the draft order

PHASE 5 — REINSTATEMENT AND THE GRADUATED ARRANGEMENT (2025 – Jun 2026)

Date / time	Event	Source · significance
(2025)	Reinstated following TD/2024/110	Related matter
7 Apr 2025 → 14 Jun 2026	■ Fourteen months of reduced-hours work, evidenced by payslips	Contradicts “unable to accommodate a graduated return to work”
8 Apr 2025	Reinstatement process correspondence with J Roberts	Pack 05
(Mar 2025)	■ RESTRICTED CATEGORY — leave request chain and response involving the Director, Corporate Services	Scope decision required before any use. Not for service
28 Mar 2025	Hughes correspondence citing Directive 03/20, HR Policy C73, HR Policy E4	None of those policies held; health.qld.gov.au returns 403
27 Aug 2025	Scheduled meeting cancelled — Hughes unwell	Pack 03
8 Sep 2025	■ Hughes attendance letter — 34 occasions	The last time attendance was formally raised. Not raised again since
3 Oct 2025	Formal written request for review to the A/Director, HR Business Partnering, concerning a process initiated by the officer who later signs the 31 Jul 2026 RFMI; union copied	Recorded at Part 2(d) of the 3 Aug 2026 letter to the Chief Executive

Date / time	Event	Source · significance
4 Oct 2025	Complaint about Hughes to J Roberts, cc Moran	Pack 03 / 05

PHASE 6 — THE FORM 29, THE OBJECTION AND THE 64G (Feb–Jun 2026)

Date / time	Event	Source · significance
17 Feb 2026	Counsel unavailability; mention moved 26 → 27 Feb	Willson
18 Feb 2026	Form 24 response and email communication	The admissions relied on throughout
27 Feb 2026	Mention — Willson appears	Appearance pattern
13 Mar 2026	s 552A conference — Willson appears	
7 Apr 2026	Mention — Willson appears ; the 5-week response window is set	
8 Apr 2026	Amended Form 9A filed (the Neville pleading, Stressor 3(b))	Respondent's amended SOFC due 13 May — exactly 35 days
22 Apr 2026	■ FORM 29 — Notice of Non-Party Disclosure sealed ; served on Matheson (Affected Party 1) and Thorburn (MSH)	20 Items. From this date MSH knows precisely which categories are sought
30 Apr 2026 15:59	■ L Griffin, Director Employment Relations MSH HR, forwards MSH correspondence to the QIRC Registry , copying the Appellant "by way of service", cc Ruttan, Matheson, Tribunal Matters	HR's ER Director personally effecting service in the appeal
5 May 2026	Medical information requested from the Appellant	Referred back to in the 26 Jun email
13 May 2026	Regulator files its amended SOFC	
22 May 2026 13:45	Mention. Commissioner notes the non-attendance of the Health Service ; MSH directed to provide objections by 4:00pm Friday 5 June. Willson does NOT appear — first listing after the amended SOFC	Registry email to Cory, Matheson, OIR-Appeals, Ruttan, Tribunalmatters (QH central) , Thorburn, Griffin
5 Jun 2026	■ ■ MSH OBJECTION K-LM26/729 — signed Noelle Cridland, Chief Executive ; enquiries Myla Ruttan, Principal Lawyer. Complied 6, 11, 12, 13, 15, 16. Non-existence 1–2, 3(c), 4, 5, 7, 14, 20. Objections 3(a), 3(b), 8, 9, 10, 17, 18, 19	Key admissions: complaints "managed solely via email or verbally "; Switchboard non-clinical so no FRMS; fatigue management after 30 Jun 2024 ; "no consequential changes"; SPOK not retained ; personal mobile outside the retention policy; 20,006 headcount. States three times that compliance requires CE approval
11 Jun 2026	■ The Regulator discloses 10pp — the 15–16 May 2024 correspondence, the leave-form walkthrough and the ESU PID form	Exhibit CS-4. Falsifies the Item 20 answer ; p 7 carries Harrison and McGinley
18 Jun 2026	Form 4 and Form 20 affirmed . ¶47 answers the two-shift premise; ¶49 quotes the objection back; ¶50 seeks SPOK verification on oath; ¶52 uses the Regulator's disclosure against Item 20	Draft order 3 — verification affidavit by the CE or a delegated Director
23 Jun 2026	64G filed and sealed	
25 Jun 2026 08:31	■ SERVED ON M RUTTAN — Postmaster delivery receipt	

PHASE 7 — ■ THE LOCKOUT AND WHAT FOLLOWED (26 Jun – 31 Jul 2026)

Date / time	Event	Source · significance
26 Jun 2026 10:42	■ ■ THE ORIGIN DOCUMENT . C Taylor, "Cory Shepherd — ECC": opens with a welfare check and the EAP brochure; notes the 5 May request outstanding; then — " Until we receive appropriate medical clearance, including a completed Employee Capacity Certificate (ECC), we are unable to facilitate your return to work... As your employer, we have a legal obligation under section 19 of the Queensland Work Health and Safety Act 2011 "	■ s 19 is a duty owed TO the worker, operating "while the workers are at work" . Cited before anything was challenged — MSH's own first, unpressured characterisation of its authority. One day after service on Ruttan — recorded, never asserted as a cause
29 Jun 2026	Appellant texts the Line Manager regarding a doctor's appointment	Referred to in the 2 Jul email (misdated there as "Monday 29th July")
1 Jul 2026	Doctor's appointment	
2 Jul 2026 14:38	Taylor recycles 26 Jun near-verbatim; adds the 2:00pm Friday 3 July deadline ; "I will process your shifts that you have not worked as Sick Leave"	■ The legal basis is DROPPED — no instrument cited

Date / time	Event	Source · significance
3 Jul 2026	■ ECC completed by Dr Ma — FIT WITH RESTRICTIONS ; “continuation of existing arrangement... worked and tolerated... without deterioration”. To Injury Management 2:30pm; resubmitted 3:06pm	MSH's own stated condition is satisfied. The bar does not lift. Invoice 574370
3 Jul 2026 15:18	Appellant replies to Taylor on the ECC and leave type	
7 Jul 2026 10:54	L Forrest: the ECC “has now been reviewed and carefully considered”, but “the Health Service does not have sufficient information to understand the nature of these matters or assess whether they present any psychosocial hazards”. Seven calendar days, consequence attached	■ Invokes “obligations under work health and safety legislation” — no Act, no section . A new condition replaces the satisfied one
13 Jul 2026	■ WAGES CEASE	Accrued leave debited without agreement — IR Act s 33 requires agreement or 8 weeks' notice
15 Jul 2026	M Harrison: pay refused ; interim duties declined in any capacity ; “unable to commit to a timeframe”	■ NO INSTRUMENT CITED . Against G03 cl 1.1 and QH-IMP-401-5 (suitable duties “actively sought” and “made available wherever reasonably practicable”)
~15 Jul 2026	■ MSH to the insurer: “ currently unable to accommodate a graduated return to work ”	Surfaced via the ART letter of 4 Aug. Contradicted by 14 months of payslips and MSH's own ECC
15 Jul 2026	Together — urgent industrial referral (Heath / Moran)	“Still reviewing / industrial team” 17 Jul
16 Jul 2026 15:54	Matheson rejects Calderbank #2	Served 1 Jul 12:16
24 Jul 2026	Appellant requests the Respondent's disclosure list	Still outstanding
28 Jul 2026 17:39	Appellant: incorrect application of EB12, the Award and HR policies	
29 Jul 2026 16:10	Harrison, EAF reply	■ The WHS Act returns — first citation since 26 June
30 Jul 2026 14:33	Harrison holding reply; “unable to guarantee my return”	No instrument . All EB12/Award/policy text in that PDF is the Appellant's own 28 July letter quoted beneath
31 Jul 2026 11:43	■ S Hughes, Director Corporate Services — Request for Medical Information , nine questions to the GP, written in the first person of the decision-maker. Q3 asks whether fit to return “under the existing reporting arrangements, including working with and reporting to [the] current line manager”	Cites HR Policy G3 and WHS ss 17, 19. cc notes@solv.com.au — a third-party system
31 Jul 2026 15:15	Harrison — reimbursement practice-confirmation gate	

PHASE 8 — THE PACKAGE AND THE RESPONSE (3–5 Aug 2026)

Date / time	Event	Source · significance
3 Aug 2026 07:17	Matheson replies on the disclosure list and the NNPD commitment	
3 Aug 2026 11:38	■ FOUR EMAILS SENT . RFMI response + allocation · cl 10.3.2 request (21-day clock → 24 Aug) · cl 1.11 Stage 1 dispute · s 89 letter to the Chief Executive	Part 2A closes the 7 July information gap in four numbered items and records that ss 47–49 consultation “has not occurred at any point since 26 June 2026”
3 Aug 2026 12:45	■ MSH Executive Services: “I have been asked by Noelle Cridland, Health Service Chief Executive , to acknowledge receipt”	67 minutes . Personal knowledge documented and dated — s 27(5)(d) WHS Act
4 Aug 2026 13:35	■ Taylor, Stage 1 acknowledgement — admits cl 1.11.2(a) 24 hours “not achieved”	An admission against interest, volunteered
4 Aug 2026 16:40	ART / J Zappia — overpayment review and employer disclosures	Surfaces the “unable to accommodate” statement
5 Aug 2026 07:30	■ Stage 1 response sent (v16) — seven questions; written answers sought by 10 August	
5 Aug 2026 11:45	The clinic telephones Harrison regarding the invoice	Third-party proof of cooperation
5 Aug 2026 16:12	QSuper reclassifies 25–31 May as a graduated return to work payment	The scheme funds the arrangement MSH told the insurer it could not accommodate
5 Aug 2026 20:53	Occupational psychology provider — indicative proposal, \$10–30k	Independent assessment, to be commissioned and funded by the Health Service

PHASE 9 — THE FORWARD CALENDAR

Date / time	Event	Source · significance
6 Aug 2026	Union industrial officer returns; submission and delegate email to go	Drafted

Date / time	Event	Source · significance
7 Aug 2026	■■ 64G MENTION BEFORE COMMISSIONER DWYER	Watch: whether the first word is "consent"; who appears for MSH; whether Willson reappears. Press verification on oath — if resisted, ask that it be reserved, not refused
10 Aug 2026	Stage 2 referral (does not self-execute) · RTI + IP Act applications · written answers to the seven questions fall due	The IP Act application is the only route to the 2026 employment file — the Form 29 date ranges stop at 30 Jun 2024
17 Aug 2026	Stage 2 concludes (if referred 10 Aug)	cl 1.11.2(b) — the employer shall arrange a conference
24 Aug 2026	■ cl 10.3.6 DEEMED REFUSAL	Self-executing. Running now

OUTSTANDING

Date / time	Event	Source · significance
■ OPEN	The last shift actually worked before 26 June 2026 is unverified . Settle from the payslips and roster	CLAUDE.md immediate task 6. Decides how the whole chronology reads
■ NOT SENT	Preservation request. Form 29 categories, employment records since 26 Jun, custodian mailboxes, the Appellant's own QH mailbox, and Solv	Send before 7 Aug. Costs nothing, cannot be objected to
■ UNKNOWN	Whether Cory.Shepherd@health.qld.gov.au remains accessible	Taylor cc'd the personal address on both 26 Jun and 2 Jul

Compiled from source documents. Admissions are cited to the Form 24; MSH's statements to the objection of 5 June 2026 (ref K-LM26/729); the 15–16 May 2024 entries to the Respondent's disclosure of 11 June 2026.